

CLOX PLATFORM SUITE

Integrated Global Master Legal Framework, Corporate Terms & Operational Policies

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1. MASTER TERMS & CONDITIONS (GLOBAL PLATFORM GOVERNANCE)

These Master Terms and Conditions ("Agreement") govern the entire architectural access, transactional logic, and multi-tenant utilization of the **Clox** digital freight forwarding marketplace and logistics orchestration system ("Platform"), operated globally and domestically by **Achieve Global Enterprises Pty Ltd** (ABN 48 626 269 387), registered under the laws of Victoria, Australia ("the Company"). By registering an account, deploying software integrations, submitting requests for proposals, or executing transport logistics workflows, all entities collectively designated as Senders, Transport Companies, Fleet Operators, and Drivers unconditionally agree to be bound by the specific hardcoded compliance guardrails and payment conditions outlined herein.

1.1 Multi-Tier Administrative Hierarchy and Commission Ledger Architecture

The Platform operates via a automated, branch-isolated multi-tenant administrative ledger structure engineered to isolate regional governance while programmatically executing financial distributions and statutory audits. Every transaction processed across the Clox engine is strictly subject to a structural **30%** Gross Platform Fee extracted at the point of initial payment settlement. The remaining **70%** Net Payout is guaranteed and routed directly to the performing Transportation Company.

The extracted **30%** Gross Platform Fee is broken down programmatically and distributed down a three-tier administrative ledger matrix:

- 1.1.1 Super Admin (Clox HQ - Global Layer): Retains exactly **15%** of the gross transaction fare. This allocation is dedicated to maintaining global database replication clusters, system security monitoring, cross-border transactional liability compliance, international payment processing protocols, and third-party API licensing costs.
- 1.1.2 Regional Master Admin (State/Province Layer): Receives exactly **10%** of the gross transaction fare for all freight loads originating within their legally designated geographic state or province. The Regional Admin ledger is programmatically funded contingent upon the execution of regional compliance audits, carrier verification gates, and localized state regulatory management.
- 1.1.3 Local BDE Admin (City/Suburb Layer): Receives exactly **5%** of the gross transaction fare for freight loads originating in their designated suburb or city limits. This layer is disbursed concurrently with the regional layer as a long-term localized customer acquisition and onboarding performance commission.

1.2 The Fortnightly (4th Night) Admin Payout Sequence

All platform settlements, ledger distributions, and admin splits are executed via a standardized automated billing engine. The system triggers the regional and local admin disbursements on a strict fortnightly cycle, specifically executing on the **4th night** sequence following the close of the transactional logging period. Internal administrative margins are explicitly calculated via the hardcoded ledger distribution formula:

$$\text{Net Admin Share} = \text{Gross Admin Share} - (\text{Calculated Management Fees} + \text{Pro-Rata Regional Marketing Deductions})$$

Processing costs, platform support variables, and state marketing fees are subtracted directly from the gross administrative ledger, ensuring that the net shares are cleared through **Monoova NPP & PayTo APIs** over Australia's New Payments Platform.

1.3 Third-Party Technology Infrastructure and Operating Costs

To ensure structural profitability, optimize system up-time, and protect proprietary margins against high-cost premium merchant interchange layers, the technical infrastructure utilizes specialized decentralized pricing integrations. Senders and Carriers acknowledge that the system costs are calculated and structured in Australian Dollars (AUD) as follows:

Infrastructure Layer	Provider / System Mechanism	Hardcoded Cost Structure (AUD)	Functional Scope & Privacy Logic
Core Routing Engine	Valhalla Routing Cluster (Hetzner Hosted)	Zero Variable Usage Cost	Native handling of vehicle mass limits, heavy vehicle exclusions, and multi-stop Traveling Salesman Problem (TSP) sequences.
Address Lookup	Google Maps Platform API	Usage-based (Post-\$200 Monthly Credit)	Restricted strictly to front-end address lookup autocomplete elements to minimize premium API overhead.
Identity Verification	ABR Web Services API Integration	Cost-Free Public Authentication GUID	Real-time real-time validation of corporate entity status and active GST registration states during onboarding.
Participant Anonymization	Twilio Proxy Service	\$1.15 per number/month + \$0.01 per SMS/min	Temporary participant number masking bridges voice and SMS communications between driver and sender without exposing personal data.
Instant Settlement	Monoova NPP & PayTo API Engine	Flat \$0.20 to \$0.50 per transaction	Bypasses standard credit card gateways (1.75%–2.9% gross friction) with direct New Payments Platform transfers.

2. TRANSPORT COMPANY (CARRIER) AGREEMENT & COMPLIANCE GATE

This Transport Company Agreement governs the contractual obligations, operational safety mandates, and regulatory compliance criteria applicable to any commercial transport entity, heavy vehicle operator, or logistics business registering as a Carrier on the Platform. Carriers function under strict statutory rules aligned with the Australian National Heavy Vehicle Regulator (NHVR) and the Chain of Responsibility (CoR) legal framework.

2.1 The Mandatory "Compliance Gate" Onboarding Mechanism

A carrier is explicitly barred from viewing, bidding on, interacting with, or accepting any freight logistics jobs across the digital load boards until their complete corporate and asset profile has been manually reviewed and unlocked by an authorized Regional Master Admin. During the system onboarding workflow, carriers must upload verified digital documentation, which triggers the platform's background verification gates:

1. **ABN/ACN Status Verification:** Real-time status cross-checking via the ABR Web Services API. The corporate structure must return an active status, matching the legal entity name exactly.
2. **Public Liability Insurance Certificate:** A current certificate of currency must be uploaded, demonstrating a mandatory minimum coverage value of **\$10,000,000 to \$20,000,000 AUD**.
3. **Transit/Cargo Insurance Certificate:** Valid insurance covering commercial freight transit damage, environmental spills, and structural cargo loss.
4. **Roadworthy Certificates (RWC):** A current, valid RWC must be uploaded for each individual heavy vehicle asset registered within the carrier's profile. The system automatically pulls the exact expiration date into the platform's core Maintenance Watchdog service layer.

2.2 Basic Marketplace Mode vs. Fleet Management Mode (Fleet+ SaaS)

Carriers are allocated access parameters based on two distinct operating tiers within the digital framework:

2.2.1 Basic Mode (Free Marketplace Access): Provides foundational transactional brokerage capabilities. To maintain complete financial clarity and prevent administrative dispute vectors, the marketplace job board and bidding portal display *only* the final **Net Payout (70%)** that the carrier will receive after commission extraction. The gross pricing paid by the sender remains fully concealed.

2.2.2 The Asset Allocation Gate: Under Basic Mode, a carrier cannot submit a proposal, lodge an instant spot bid, or accept a contract unless they explicitly assign a specific, verified vehicle asset (VIN) and a qualified, compliant driver profile from their registered pool to that exact job time slot.

2.2.3 Smart Conflict Handling Engine: If a carrier uses the same vehicle asset or driver profile to bid across multiple overlapping job schedules, the moment one contract is successfully awarded, the platform's background transaction system triggers a full automated update:

*Status*_{Competing Bids} → *Expired* where $t_{\text{overlap}} \geq 1 \text{ min}$

All other outstanding bids involving that specific asset combination instantly expire, and the system transmits immediate push notifications to prevent double-booking anomalies.

2.2.4 Fleet+ SaaS Premium Subscription Layer: An advanced, tier-structured internal operating system (offered via Starter, Growth, or Enterprise models) that unlocks the **Cost & Profit Engine**. This engine automates trip-level profitability matrix calculations using real-time net values and telematics data:

$$\text{Profit}_{\text{Trip}} = \text{Net Payout (70\%)} - [\text{Fuel Cost} + \text{Driver Wages} + \text{Tolls} + (\text{Maintenance Rate} \times \text{Distance})]$$

Under the *Enterprise Tier*, the system additionally factors in asset depreciation by subtracting a daily depreciation coefficient calculated from the vehicle's initial purchase price and target residual lifecycle value.

2.3 Maintenance Watchdog Lockout and Operational Safeguards

The Fleet+ subscription includes continuous automated guardrails designed to prevent non-compliant equipment operation. The platform runs background cron jobs matching real-time odometer metrics (ingested via standard J1939 CAN-bus protocols) against scheduled maintenance intervals and stored RWC expiration matrices. The moment a vehicle exceeds its defined maintenance interval or its RWC date expires, the platform enforces an un-bypassable state change:

Vehicle Status → **MAINTENANCE** [System Lockout Activated]

The vehicle is structurally blocked from participating in job bidding or active dispatches until updated certification or service records are logged and approved by the admin layer. Additionally, the dashboard triggers operational alerts if a vehicle's profit margin drops below **15%** or if its tracked asset idle time exceeds **40%**.

3. SHIPPER (SENDER) AGREEMENT & ROUTING WORKFLOW

This Shipper Agreement governs the terms, billing constraints, and routing mechanisms applied to commercial enterprises, individual business units, and corporate entities ("Senders") who publish freight logistics requirements on the Platform. Senders acknowledge that the Platform does not function as a traditional asset-owning transport broker; instead, it operates a standardized, algorithmically controlled Request for Proposal (RFP) engine.

3.1 Job Selection Modes & Statutory Award Integration

Senders must configure their logistics requirements using two distinct operational pricing frameworks, which are hardcoded to comply with Australian industrial standards:

- **Interstate / Regional (Per KM Mode):** Structured around fixed pricing matrices mapped against optimized distance data, supporting a single defined pickup location and a single destination drop-off point.
- **Local (Hourly Mode):** Structured around dedicated vehicle and driver allocations booked on a "Day Basis." To maintain full compliance with the **Road Transport and Distribution Award 2020**, the platform enforces a mandatory minimum charge of **4 hours** per booking, regardless of whether the physical transit duration is shorter.

3.2 Hourly Multi-Pickup & Multi-Drop Logic

To accommodate complex urban distribution systems, Local Hourly bookings support advanced multi-stop sequencing constrained by the following architectural options:

- **Pattern A (Multi-Pickup Workflow):** Supports a maximum of **3 separate pickup waypoints** routing into **1 final drop-off location**.
- **Pattern B (Multi-Drop Workflow):** Supports exactly **1 initial pickup waypoint** routing into a maximum of **3 separate drop-off locations**.

3.3 Auto-Route Planning & Driver Fatigue Gate

For all multi-stop or multi-pickup bookings, the Platform's core engine automatically sequences target locations utilizing a localized Traveling Salesman Problem (TSP) optimization matrix executed via the Valhalla Routing Cluster. Before an RFP can be finalized and broadcast to the carrier network, the system performs a mandatory check on the planned duration (incorporating distance, historical transit congestion data, and standardized loading/unloading time window offsets).

NHVR Driver Fatigue Gate Protocol: If the calculated total planned journey duration exceeds exactly **5.25 hours**, the Platform automatically inserts an unpaid, non-deletable **15-minute rest break** directly into the estimated time of arrival (ETA) timeline rendered to the Sender. Senders are strictly barred from removing or overriding this break, ensuring strict adherence to the National Heavy Vehicle Regulator (NHVR) safety rules.

3.4 Load Specifications and Smart Safety Rules

Senders must inputs precise dead weight values (expressed in kilograms) and exact physical dimensions (Length x Width x Height in meters) for all cargo. The platform uses specialized auto-logic rule triggers linked to mandatory check-boxes to enforce heavy vehicle compliance:

Load Type Trigger	Mandatory Inputs / Options	Hardcoded System Safety & Carrier Broadcast Rules
Dangerous Goods (DG)	Class Selection (1-9) & Absolute Weight (kg)	Restricts broadcast strictly to carriers with active DG-licensed drivers and placard-compliant assets. Generates a mandatory digital manifest upload block if the weight exceeds 1,000 kg.
Oversize / Over-dimension	Length > 13.6m OR Width > 2.5m	Triggers an automatic permit warning statement; restricts bid access exclusively to specialized flatbed or tray vehicle configurations.
Liquid / Bulk Cargo	Drums, IBCs, or Tanker Selections	Requires explicit confirmation of active onboard spill containment equipment before a carrier can submit a proposal.
Steel / Heavy Metals	Coils, Rebar, or Plates	Enforces driver confirmation of heavy-duty transport chains and NHVR-compliant specialized cargo restraints.
Temperature Controlled	Frozen, Chilled, or Pharmaceutical Classes	Restricts access to refrigerated vehicle configurations and mandates the entry of a continuous temperature range log.

3.5 Site Access and Maneuverability Assessment (Mandatory Legal Wording)

To eliminate futile transport trips, mitigate driver detention delays, and protect operational flow, all Senders must complete a formal site assessment profile before publishing an RFP. The system enforces three mandatory fields:

- 1. Maneuverability Profile Selection:** Senders must select exactly one option: *Tight Street*, *Standard Industrial*, or *Wide Yard*.
- 2. Facility Specification Selection:** Senders must select exactly one option: *Raised Loading Dock (48-52 inches)*, *Ground Level*, or *Forklift Required*.

Before publishing, the Sender must check an explicit checkbox acknowledging the following mandatory legal disclaimer:

"Incorrect load type selection, dimension variance, or inaccurate site access profile selection may result in immediate job rejection by the arriving carrier, the execution of automated futile travel fees, or additional driver waiting charges calculated under standard platform rates."

4. DRIVER AGREEMENT & SAFETY-FIRST SEQUENCE

This Driver Agreement governs the license parameters, behavior expectations, and safety mandates for individual commercial drivers ("Drivers") operating the Clox mobile application layer. The workflow inside the Driver App is governed by hardcoded safety sequences that operate as physical gates. These gates protect the platform, carriers, and users from Chain of Responsibility (CoR) safety liability under Australian transport law.

4.1 Gate A: Pre-Trip Safety Walk-around Checklist

Before a driver can commence an active operational shift or view assigned dispatches, the mobile application enforces a mandatory physical inspection sequence. The driver must check off specific items within the application interface. If any safety-critical checkbox (including but not limited to: *tyre tread depth under 1.5mm*, *soft or non-responsive service brakes*, or *active fluid/engine leaks*) is marked as a "Fail," the system executes an automated safety shutdown workflow:

Vehicle Status → **LOCKED** | *Shift Initialization* → **BLOCKED**

The vehicle profile is automatically marked as locked in the core database, an open maintenance work order is instantly generated inside the parent Transport Company's dashboard, and the driver application is locked against trip initiation features. Upon passing all checks, the driver is granted access to the **Maneuverability Preview**, which displays the Sender's specific turning circle attributes and loading dock configurations to ensure safe approach navigation.

4.2 Pre-Trip Compliance Gating and Mass Verification Logic

Upon arriving at the primary loading location, the platform restricts active dispatch features until the driver input-validates axle configuration metrics. The platform executes a real-time validation sequence computing total operational weight variables:

Calculated Operating Weight = *Vehicle Tare Weight* + *Declared Cargo Payload*

If the computed total operating weight exceeds the vehicle's legal Gross Vehicle Mass (GVM) limits or violates National Heavy Vehicle Regulator (NHVR) axle tolerances, the system executes a **hard system lockout**. All transit tracking, route guidance, and status milestones are completely frozen, preventing the driver from commencing the trip until weight corrections are confirmed or cargo is legally offloaded.

4.3 Fatigue Verification and Break Protocols

To ensure compliance without establishing operational liability, the platform utilizes a hybrid fatigue management framework:

- **Electronic Work Diary (EWD) API:** If enabled by the carrier, the platform queries the driver's linked EWD database to verify compliance and confirm that the driver possesses sufficient statutory remaining driving hours under standard or Basic Fatigue Management (BFM) rules.
- **Manual Paper Logbook Protocol:** Where an integrated EWD link is absent, drivers manage fatigue and rest cycles manually via their physical national paper diaries. No automated in-app fatigue alerts are triggered during transit. However, the driver interface features a dedicated "**Taking Break**" button. Tapping this button instantly pauses the active live GPS telemetry stream and updates the destination ETA rendered to the Sender, preventing false alerts.

4.4 Odometer Discrepancy Audits and Proof of Delivery (POD) Capture

To prevent systemic billing fraud, distance manipulation, or unauthorized route deviations, the system enforces a strict verification check comparing GPS tracking data against manual odometer values input by the driver at the initiation and conclusion of their shift. If the variance matches the following condition:

$$| \text{Manual Odometer Distance} - \text{GPS Distance} | > 10\%$$

The system applies an un-deletable **Odometer Discrepancy Flag** to the digital run sheet and automatically routes the entire file to the Super Admin dashboard for fraud investigation and invoice suspension.

To legally finalize any transit contract and unlock subsequent ledger distributions, the driver must execute the complete **Proof of Delivery (POD) Sequence** within the destination geofence:

1. Capture and record the final receiver's legal name via manual text input.
2. Collect the receiver's physical signature utilizing the integrated Sign-on-Glass (SOG) module.
3. Capture a mandatory high-resolution photo of the offloaded goods in their final physical positioning at the delivery site.

The platform instantly bundles these elements into a standardized, cryptographically secure PDF containing a server-locked, tamper-proof timestamp metadata block.

5. PRIVACY POLICY & DATA GOVERNANCE FRAMEWORK

This Privacy Policy outlines how the Platform collects, processes, encrypts, and isolates operational data, telematics records, and personal identifying information (PII) belonging to users. The data architecture is structured around strict multi-tenant isolation rules, designed to limit exposure while maintaining operational integrity.

5.1 Location Tracking and Edge Geofencing Protocols

The Platform's mobile application utilizes continuous background location services (via native iOS CoreLocation and Android Location API layers) to enforce operational guardrails. GPS coordinate telemetry is captured to determine arrival and departure events at predefined pickup and drop-off geofences.

- **Geofence Monitoring:** The system automatically logs arrival timestamps when a vehicle enters a 200-meter radius around a waypoint. This event locks the time data to prevent billing disputes.
- **Telemetry Anonymization:** To protect driver privacy, all active background location tracking streams are instantly paused whenever a driver activates the "Taking Break" status or terminates an operational shift sequence.

5.2 Participant Communication Anonymization via Twilio Proxy

To prevent the exposure of personal mobile numbers and preserve commercial boundaries, all telephone calls and SMS messages routed through the platform utilize the **Twilio Proxy Layer**. Temporary virtual numbers are algorithmically mapped to the driver and sender profiles for the active duration of the specific transit contract. The moment the trip status changes to "Complete," the proxy mapping is torn down, and all communication capabilities between the independent participants are severed.

6. OPERATIONAL POLICIES & EXCEPTION RECOVERY FLOWS

Operational policies govern exception handling, system disruptions, asset failures, and financial recovery procedures within the Platform ecosystem. All users agree to abide by these automated recovery rules in the event of unforeseen logistics contingencies.

6.1 Heavy Vehicle Breakdown and Exception Recovery Sequence

In the event of a catastrophic mechanical failure or vehicular accident during transit, the driver must immediately initiate the **Breakdown Protocol** via the mobile interface. This transmission triggers a synchronized status update across all application tiers:

1. **Database State Change:** The underlying asset status transitions to *Breakdown - In Progress*, and the active shipment lifecycle is frozen.
2. **Sender Notification:** The Sender receives an instant push notification outlining the mechanical delay.
3. **Financial Escrow Isolation:** The platform ledger halts the active contract and moves the contract capital out of the active escrow account back into a neutral holding pool.

The carrier company must resolve the breakdown using one of two automated recovery options:

Option A (Internal Asset Swap): The carrier assigns a new vehicle asset and a compliant driver from within their own fleet profile to the existing job. The system automatically cross-checks the new driver's remaining legal hours via the EWD verification gate. Upon validation, the Sender's application is updated with the new driver's photo, performance rating, vehicle registration number, and recalculated ETA. The Sender must tap **Approve** to resume transit or **Cancel** to terminate the contract.

Option B (Market Release & Refund Flow): If the carrier cannot provide an immediate compliant replacement asset, the job is released back onto the open marketplace board, or the contract is cancelled. The platform's billing ledger triggers an automated **Stripe Transfer Reversal / Monoova Escrow Refund**, returning 100% of the escrowed capital to the Sender's account. Refund thresholds and cancellation penalties are strictly governed by major failure rules under the **Australian Consumer Law (ACL)**.

6.2 Performance Logging and Corporate Auditing

Every breakdown incident, mechanical failure lock, and unauthorized cancellation is automatically logged as a negative metric against the carrier's permanent **Company Performance Score** within the Super Admin dashboard. This score directly weights the carrier's future proposal visibility ranking across the open marketplace RFP distribution engine, ensuring structural quality control across the digital network.